ERIC BRAKEBILL JONES
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Petitioner and Successor Trustee In Pro Per

SUPERIOR COURT OF CALIFORNIA

COUNTY OF MONTEREY – PROBATE DIVISION

Estate of: **JUDY BRAKEBILL JONES,** aka JUDY LEE JONES, Decedent.	**Case No. 25PR000590** **EX PARTE PETITION FOR:** **1. SUSPENSION OF POWERS OF EXECUTOR (PROB. CODE § 9614)** **2. APPOINTMENT OF SPECIAL ADMINISTRATOR WITH GENERAL POWERS (PROB. CODE §§ 8540, 8544)** **[IMMEDIATE RISK OF WASTE / CONSTRUCTIVE ABANDONMENT]**

Date: February 10, 2026

Time: 8:30 AM

Dept: 13

Judge: Hon. Elisabeth K. Mineta

TO THE HONORABLE JUDGE OF THE SUPERIOR COURT:

Petitioner Eric Brakebill Jones ("Petitioner") hereby applies Ex Parte for an Order suspending the powers of Heidi Jones Blanchard ("Respondent") and appointing Petitioner as Special Administrator with General Powers under the Independent Administration of Estates Act (IAEA) to preserve the Estate.

I. BASIS FOR EX PARTE RELIEF (THE EXIGENCY)

This Application is based on the urgent need to prevent further waste and dissipation of Estate assets.

1. Ongoing Insolvency (The "Mule Transaction"):
Evidence confirms Respondent previously facilitated the unauthorized transfer of $10,650.00 in Estate cash to a third-party account lacking economic substance (**Exhibit A**, Chase Transaction #61). This established a pattern of dissipation. The Estate is currently unbonded against this risk.

2. Constructive Abandonment (The "Nexus"):
Respondent and her counsel have constructively abandoned the defense of the Estate, evidenced by their default on mandatory filing fees in the related appellate matter (*Jones v. Superior Court*, Case H054014) as of January 23, 2026 (**Exhibit E**).

3. Regulatory Conflict (State Bar Case #265071):

Respondent's counsel is currently the subject of a Priority 1 State Bar investigation regarding the misappropriation identified in **Exhibit A**. Consequently, the Fiduciary is effectively unrepresented.

4. Waste:

The Real Property is the sole remaining asset. Without the immediate appointment of a Special Administrator to list and sell the property, the Estate faces irreparable harm from tax defaults, insurance lapses, and market decline.

II. MEMORANDUM OF POINTS AND AUTHORITIES

A. THE COURT MUST SUSPEND POWERS TO PREVENT "FUTURE" HARM (PROB. CODE § 9614)

Probate Code § 9614 mandates suspension if "it appears to the court that the personal representative has wasted... or is about to do so."

The standard is predictive. The "Mule Transaction" (**Exhibit A**) proves the propensity to dissipate assets. The "Appellate Default" (**Exhibit E**) proves the incapacity to manage legal duties. Combined, these facts demonstrate that the Respondent is "about to" allow the Estate to collapse through neglect or further dissipation. The "staleness" of the initial theft is irrelevant; the unbonded risk creates a fresh emergency every day the Respondent remains in power.

B. APPOINTMENT OF SPECIAL ADMINISTRATOR IS NECESSARY (PROB. CODE § 8540)

Under *Estate of Feeney* (1983), the Court has inherent power to appoint a Special Administrator to preserve the estate when the current representative is paralyzed or compromised.

Here, the Estate is leaderless. The Respondent has defaulted in the Court of Appeal. Her counsel is conflicted (State Bar #265071). Immediate appointment of Petitioner as Special Administrator with General Powers (Prob. Code § 8544) is the only mechanism to secure the Real Property, list it for sale, and deposit proceeds into a blocked account, thereby curing the risk.

III. DECLARATION OF ERIC BRAKEBILL JONES

I, Eric Brakebill Jones, declare:

1. The Property:

The asset at risk is 17742 Berta Canyon Road, Salinas, CA. It is currently unoccupied.

2. Evidence of Dissipation (Exhibit A):

Attached as **Exhibit A** is a Chase Bank receipt showing the deposit of $10,650.00 (vehicle sale proceeds) into a third-party account ending in #9872 on May 22, 2025. These funds were diverted from the Trust.

3. Evidence of Admission (Exhibit B):

Attached as **Exhibit B** is a letter from Nicora Law dated June 27, 2025, admitting possession of these funds, which contradicts their subsequent Verified Petition.

4. Evidence of Abandonment (Exhibit E):

Attached as **Exhibit E** is the "Notice of Default" from the Court of Appeal (Case H054014) dated Jan 23, 2026. This confirms Respondent's counsel has ceased legal defense of the Estate.

5. Necessity:

I request appointment as Special Administrator to list the property immediately. I agree to hold all net proceeds in a Court-Blocked Account.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 9, 2026, at Temple City, California.

EBJ

Eric Brakebill Jones

Petitioner

IV. DECLARATION REGARDING NOTICE (CRC 3.1204)

I, Eric Brakebill Jones, declare:

1. Notice Given:

On Sunday, February 8, 2026, at 10:05 PM, I notified Respondent's counsel, Albert J. Nicora, via email at anicora@nicoralaw.com of this Ex Parte application to be heard on Feb 10, 2026.

2. No Opposition Expected:

I do not expect an appearance. Counsel has ceased communication and defaulted on the related appellate matter (**Exhibit E**). Furthermore, Counsel has a direct conflict of interest regarding the evidence of asset dissipation (**Exhibit A**) and is the subject of State Bar Investigation #265071 regarding the same.

3. Exigency:

Immediate suspension is required because notice to the Respondent of a "removal" action presents a severe risk that remaining liquid assets will be dissipated before a hearing can be held (CRC 3.1204(b)(3)).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.



Eric Brakebill Jones

[PROPOSED] ORDER

SUSPENDING POWERS AND APPOINTING SPECIAL ADMINISTRATOR

The Ex Parte Petition of Eric Brakebill Jones for Suspension of Powers of Executor and Appointment of Special Administrator having come before the Court, and good cause appearing therefor:

IT IS HEREBY ORDERED THAT:

1. The powers of Heidi Jones Blanchard as Personal Representative of the Estate of Judy Brakebill Jones are hereby SUSPENDED pursuant to Probate Code § 9614, pending further order of this Court;

2. Eric Brakebill Jones is hereby appointed Special Administrator with General Powers under the Independent Administration of Estates Act (Probate Code §§ 8540, 8544);

3. The Special Administrator is authorized to list for sale, market, and sell the real property located at 17742 Berta Canyon Road, Salinas, CA, under IAEA authority;

4. All net proceeds from the sale shall be deposited into a Court-Blocked Account, subject to further order of this Court;

5. Letters of Special Administration shall issue upon the filing of any required bond.

DATED: _____

_____

Hon. Elisabeth K. Mineta

Judge of the Superior Court

PROOF OF SERVICE

I, Eric Brakebill Jones, declare that I am over 18 years of age and not a party to this action. On February 9, 2026, I served the following document(s):

EX PARTE PETITION FOR SUSPENSION OF POWERS OF EXECUTOR AND APPOINTMENT OF SPECIAL ADMINISTRATOR WITH GENERAL POWERS

on the following party by the method indicated:

BY ELECTRONIC SERVICE (EMAIL):

Albert J. Nicora, Esq.
Nicora Law, APC
anicora@nicoralaw.com
Counsel for Heidi Jones Blanchard

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 9, 2026, at Temple City, California.

EBJ

Eric Brakebill Jones


CHASE

Deposit cash or checks
at most Chase ATMs.
An image of your check can
be printed on your receipt.

My Transaction Summary

Transaction #61	
Account Number Ending In:	9872
Checking Deposit	$10,650.00
Cash In	$10,650.00
Available Balance	$16,398.39
Present Balance	$16,398.39

Further review may result in delayed
availability of this deposit

JPMorgan Chase Bank, N.A.
Park West, Branch 740689
1-800-935-9935
Your satisfaction matters. Share your
feedback at: chase.com/sendusfeedback

Member FDIC, Equal Housing Lender
Please keep your receipt
05/22/2025 12:26

Business Date 05/22/2025
Session #22

Thank you - Scarlett
Cashbox #04

ALBERT J. NICORA
NICORA DAW OFFICES, LUP ATTORNEYS AT LAW
20385 CARMEL RANCHO BLVD., STE, 100
OF COUNSEL
JACQUELINE E NICORA
MICHAEL A. ATTERIDOE
JOELLE C. CLARK
ANDREW S. BLOMOUIST

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5634 Noel Drive
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CARMEL, CALIFORNIA 03023

TELEPHONE (831) 022-2000

(831) 822-2001

www.NICORALAW.COM June 27, 2025

BARRY R. HARROW

RE: The Judy Brakebill Jones 2008 Revocable Trust
Last Will of Judy Brakebill Jones

Dear Mr. Jones,

This office represents Heidi Blanchard who is a beneficiary of the Judy Bra2008 Revocable Trust and Co-Executor of the Last Will of Judy Brakebill Jones.

Please direct all communications for our client directly to this office. Do not coclient directly.

We have been able to review the following documents:
(1) Last Will of Judy Brakebill Jones dated April 8, 2008
(2) The Judy Brakebill Jones 2008 Revocable Trust dated March 18, 2008
(3) First Amendment to the Judy Brakebill Jones 2008 Revocable Trust dated Augus 1,2016

If there are any amendments, codicils, or other relevant estate planning documents, please provide us with a cony.

We must state that we dispute the multiple characterizations of our client and other family members stated by you. In an effort to move the process forward, we will not respond to your specific claims at this time.

Heidi, as Co-Executor, sold tangible personal property including a vehicle. Under the Last Will, all tangible personal property including personal automobiles is to be distributed to Judy's children equally. Therefore, my client proposes the $10,650.00 from the sale of the tangible personal property be distributed equally between you, Gretchen, and Heidi. Each would receive $3,550.00.

Please advise us if you are in agreement. Please confirm your check should be sent to your attention at the address above.

Regarding the remaining tangible personal property including items in the safe deposit box, please contact us to discuss the next steps including accessing the safe deposit box and distributing its contents. We can also discuss distributing the remaining personal property:

Regarding the Judy Brakebill 2008 Revocable Trust, please provide us with the following:
(1) A list of assets as of date of death.
(2) Your plan regarding the real propeny located at 17742 Berta Canyon Road. Salinas, CA 93907\.
a. Specifically: we request being advised as to who do you plan on listing the property with and your proposed listing price.

Again, all communication regarding the Trust or assets of Judy Brakebill Jones should be directed to our office. Please do not contact our client.

We look forward to working with you on this matter.

Thank you,

NICORALAW OFFICES. LIP

Albert Nicora



Eric B Jones <eric@recovery-compass.org>

Servicing Notification for H054014 - | Jones v. Superior Court

1 message

truefilingadmin@truefiling.com <truefilingadmin@truefiling.com> Fri, Jan 23, 2026 at 4:20 PM
To: eric@recovery-compass.org

The document listed below is being electronically served to you for case **H054014** by **Attorney Name Not Specified** from the **California Court of Appeal, Sixth Appellate District**.

- Document Title: H054014 - Notice - DEFAULT NOTICE FOR RESPONSIVE FILING FEE SENT TO: - 1/23/2026
- Case Number: H054014
- Description: | Jones v. Superior Court
- Link: Click to download document

The following people were electronically served this document.

Eric Jones (eric@recovery-compass.org)
Albert J. Nicora (anicora@nicoralaw.com)
S.Ramirez (truefilingadmin@truefiling.com)

If you are unable to view the document using the hyperlink above, please copy and paste the entire URL into a web browser's address bar.

https://eservices.truecertify.com/?loc=CAC-S2Q1LH-E66F44F0&key=984

Thank you,

California Court of Appeal, Sixth Appellate District